

ORGAN AND BONE MARROW DONATION LEAVE

The Loudoun County School Board shall provide unpaid job and benefit-protected leave to employees who are donating an organ up to 12 weeks (60 days) or bone marrow for up to 6 weeks (30 days).

A. Coverage. Employees who are donating an organ are eligible to take up to 60 business days of unpaid job and benefit protected leave in any 12-month period. Employees who are donating bone marrow are eligible to take up to 30 business days of unpaid job and benefit protected leave in any 12-month period. This leave shall not be counted towards leave under the Family and Medical Leave Act (FMLA).

1. The employee must have been employed by the School Board for at least 12 consecutive months from the first date of absence.

2. An employee who returns to work after taking organ donation leave shall be entitled to either restoration of the position of employment held by the employee when the organ donation leave began or an equivalent position, with equivalent benefits, pay, and other terms and conditions of employment. The School Board may deny restoration of an employee's position of employment because of conditions unrelated to the exercise of rights under this policy. Employee benefit premiums will accrue during this leave if no payment is available through payroll deduction.

3. The employee is eligible to use their sick leave, personal leave and/or annual leave to continue to receive pay during their absence.

4. The employee is eligible to apply for benefits under short-term disability benefits as permitted by the plan, including all eligibility requirements.

5. The employee is eligible to apply for benefits under the School Board Parental and Medical Paid Leave program as permitted by the program, including meeting all eligibility requirements.

6. This leave may be taken in any 12-month period.

7. The School Board shall not consider an eligible employee organ donation leave to be a break in service for the purpose of the employee's right to salary adjustments, sick leave, vacation, paid time off, annual leave, seniority, or other employee benefits.

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B. Procedure

1. Employees must provide documentation to Human Resources and Talent Development (HRTD) Leave & Disability Programs from a health care provider confirming the employee is an organ or bone marrow donor and there is a medical necessity for the donation of the organ or bone marrow. This information should also include the anticipated date of the procedure and the anticipated recovery period. Should the anticipated procedure date not be immediately available, notice should be provided as soon as possible, and documentation updated with anticipated date(s) of absence once available.

2. Employees must provide a return to work clearance, with or without restrictions, to HRTD Leave & Disability Programs prior to reporting to the worksite. If the restrictions are not able to be accommodated, the employee will remain on leave until such time as the restrictions have changed and/or they can be accommodated.

3. Leave approved by HRTD Leave & Disability Programs will be documented and confirmation provided to the employee and the supervisor.

Adopted: 6/27/23

Legal Ref: Code of Virginia, 1950, as amended, § 40.1-33.7